

- ❖ The document issued by the government for the rights of common citizens is called the Citizen Charter.
 - ✓ It is a written public document prepared by a department/institution/government office that contains the following information:-

Core elements of the Citizen Charter

- Objectives and vision of the institution/department
- Details of the services provided by the institution
- Commitments of the institution
- Time period required to obtain the services
- Process of obtaining the services
- Grievance-redressal mechanism
- Expectations of the institution from the citizens
- Publicizing various methods for availing the services



1. It is an idealistic concept.
 2. The institution has an ethical obligation to provide services within the prescribed time limit.
 3. The government expects every institution to follow the Citizen Charter.
- Objectives:
- To provide quality services to citizens according to prescribed standards.
 - To make the organization transparent, accountable, and citizen-centric.
- Features of the Citizen Charter:
- The Citizen Charter is committed to providing quality services to citizens.
 - The Citizen Charter includes the expectations that the organization has from citizens in order to fulfill its commitments.
 - The Citizen Charter is not legally binding; therefore, it is not enforceable in a court of law.

Development of the Citizen Charter -

- This concept was initiated by the Prime Minister of the United Kingdom, John Major, in 1991 through the Charter Mark Scheme, under which a system was arranged to reward officials who performed well.

Introduction in India

- In India, the Citizen Charter was first initiated through a movement by an NGO named 'Common Cause', established by H.D. Shourie.
- In 1996, the first discussion on the Citizen Charter took place at the Chief Secretaries' Conference in

Citizen Charter includes -

- Standards of services provided by the organization
- Information about the organization, choices, and consultations
- Non-discriminatory access to services

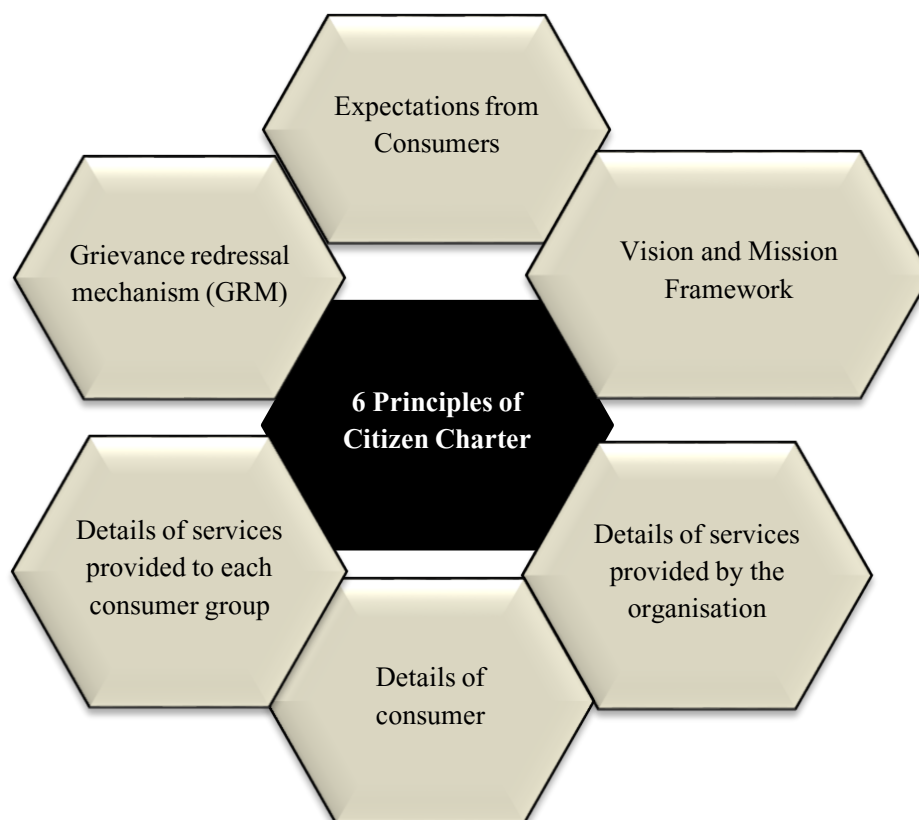
New Delhi. (A nine-point action plan was prepared) ➤ In 1997, at the Chief Ministers' Conference, the decision was taken to implement the Citizen Charter. (Chairperson – Former Prime Minister Shri Inder Kumar Gujral) ➤ In 2011, the Citizen Charter and Grievance Redressal Bill was presented in Parliament, but it could not be passed. ○ Hence, the Citizen Charter is not enforceable in a court of law. ○ The first Citizen Charter in India was introduced by the Ministry of Food and Civil Supplies.	➤ Commitments towards citizens regarding grievance redressal, etiquette, etc.
Introduction in Rajasthan - ➤ In Rajasthan, the Citizen Charter was introduced in 1998 by the Food and Civil Supplies Department during the tenure of then Chief Minister Shri Ashok Gehlot.	➤ In 2004, the Department of Administrative Reforms and Public Grievances outlined the guiding principles of the Model Citizen Charter, which include: i. Objectives and mission statement of the organization. ii. Details of the services provided by the organization. iii. Details of the customer groups associated with the organization. iv. Details of the public grievance redressal mechanism. v. Details of the work performed by the organization. vi. Timeframe for providing services. vii. Expectations from public records (expectations from customers). viii. Promoting various methods for availing the services.

Importance of the Citizen Charter

- Promotes awareness among people about obtaining services.
- Helps in providing quality and timely services.
- Increases administrative transparency.
- Establishes citizen-centric governance.
- Reduces administrative corruption.
- Enhances accountability of public servants.
- Ensures quality administration.
- Serves as an effective mechanism for redressal of public grievances.
- Establishes a responsible government.
- Promotes public participation in government schemes.
- Sets clear targets for services at all levels.

- Improves the quality of public services.
- Increases awareness among citizens about their rights.

6 Principles of the Citizen Charter



Legal Rights

Legal rights are enforceable and protected by law. The sources of legal rights are the Constitution, laws, and judicial decisions, which are granted to individuals for the protection of various sections of a country. From time to time, the Indian Parliament and the Rajasthan State Legislature have passed bills to provide various legal rights to the general public.

Rajasthan Public Service Guarantee Act 2011 (PSGA)

➤ Governor's approval and notification in the Gazette – 21 September 2011	➤ Commenced/Effective – 14 November 2011 [Act No. 23] [2011(23)]
➤ Nodal Agency – Department of Administrative Reforms and Coordination.	➤ Enacted in the 62nd year of the Republic of India.
✎ For the first time in India, the Madhya Pradesh government introduced the PSGA Act on 18 August 2010.	
✎ Public service, as defined under this Act, refers to the delivery of services by a government body or public servant within a specified time frame.	

Objective		
In the context of the common citizen	In the context of the state administration	Legal Provision
➤ To provide eligible persons with the benefits of the state government's welfare schemes and services within the prescribed time frame.	➤ To ensure transparent, responsive, accountable, and corruption-free governance.	➤ To grant a legal right to receive services, ensure transparency in service delivery, and provide a grievance redressal mechanism. Note: Provision for First and Second Appeal

Provisions/Features -

This Act is an extension of the Citizen Charter as it includes legal provisions for delivering departmental services within a specified time frame.

- ✓ **Initially – 108 services of 15 departments were included (currently – 306 services of 28 departments).**
- ✓ **Under this law, it is mandatory for a department/public authority/institution to display the details of the services provided at a conspicuous place on a notice board.**

Procedure for Obtaining Services:-

- An eligible person submits an application to the designated officer of the department/institution in a public authority to obtain a service. The designated officer issues a receipt to the applicant, mentioning the time frame for the delivery of the service.
 - ✓ **There is no fee for the application (application is free of charge).**
 - ✓ **If the designated officer refuses to provide a service or rejects the application, the reason must be provided.**
 - ✓ **All information, including the time limit for filing an appeal and the details of the appellate authority, must be provided.**
 - ✓ **Public authority includes any authority or body established, owned, controlled, or funded by the State Government or by a law made by the State Legislature.**
- ✎ Under the Public Service Guarantee Act, not only the departments of the State Government but also authorities, boards, corporations, universities, and such institutions that receive assistance from the State Government can be included.
- ❖ If the applicant does not receive the service within the specified time frame, they can file an appeal. The appellate provisions under the Act are as follows: -

Appellate Provisions

First Appeal (within 30 days)	Second Appeal (within 60 days)
If the designated officer rejects the application or fails to provide the service within the prescribed time frame, then- ➤ The applicant can file a appeal with the First Appellate Authority within 30 days. ✓ <i>The First Appellate Authority will resolve the complaint within 21 days.</i>	If the applicant is not satisfied with the decision of the First Appellate Authority or if the First Appellate Authority rejects the complaint, then – ➤ The applicant can appeal to the Second Appellate Authority within 60 days. ✓ <i>The decision of the Second Appellate Authority shall be final.</i> ✓ <i>Under this law, judicial intervention is prohibited.</i>

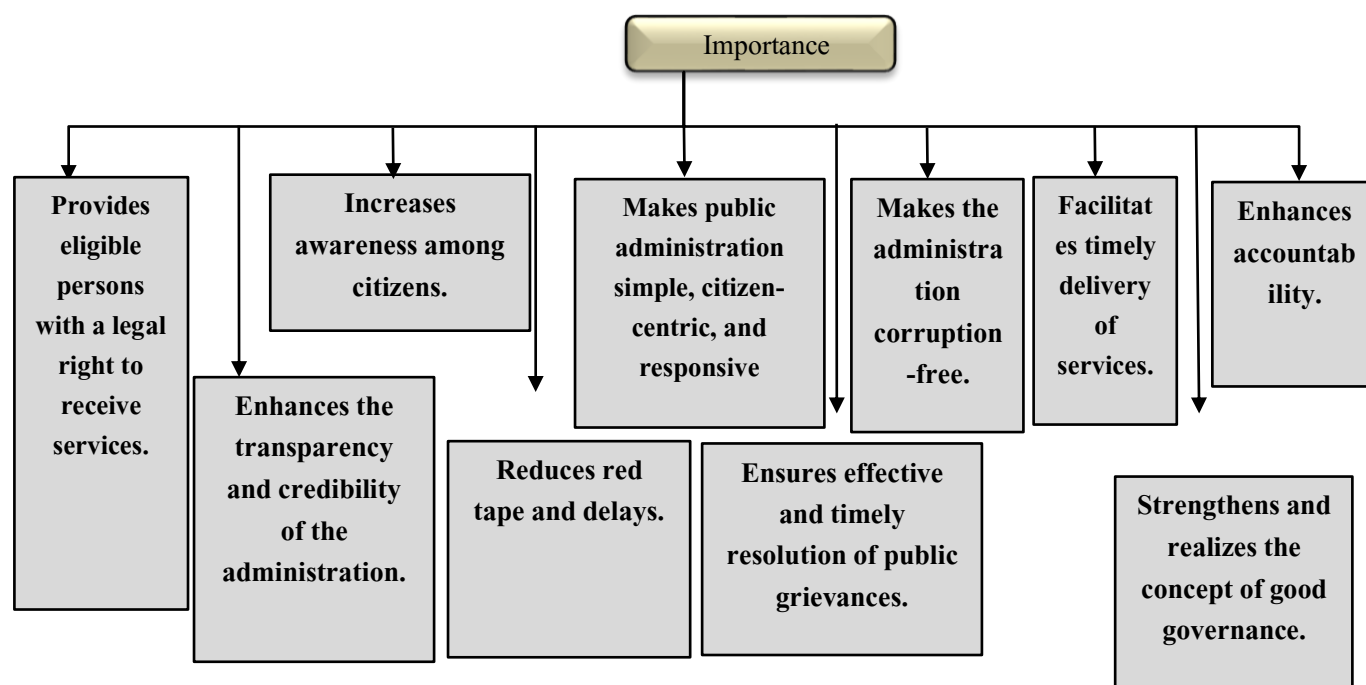
Provision for Penalty/Fine

The Second Appellate Authority can take the following actions if the designated officer/First Appellate Authority of the concerned department is found guilty: -	Review (within 60 days)
➤ If the designated officer fails to provide the service within the prescribed time frame → Penalty of ₹250–5000. ➤ If the designated officer denies the service or the First Appellate Authority fails to perform their duties → Penalty of ₹500–5000.	➤ The designated officer or first appeal officer aggrieved by an order of the second appellate authority

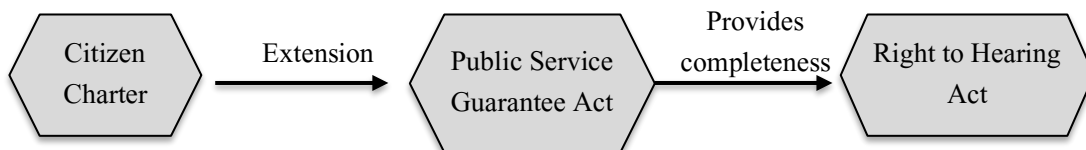
Note: Additionally, the Second Appellate Authority can recommend disciplinary action against the concerned authorities to the competent authority.

- The First and Second Appellate Authorities have the power to act under the Code of Civil Procedure, 1908.
- The penalty amount will be recovered from the salary of the concerned officer.
- The penalty amount can be sent to the applicant as compensation.

in respect of imposing of penalty under this Act, may make an application for revision to the officer nominated by the State Government within a period of 60 days from the date of that order.



Rajasthan Right to Hearing Act, 2012 (RTHA)



- ❖ **Objective** – To provide citizens with the right to a timely hearing regarding complaints against the failure of any public servant in delivering services under policies, programs, or schemes implemented by the State Government or Central Government in the state.

❖ Governor's Approval – 21 May 2012	❖ Commenced/Effective – 1 August 2012 (throughout Rajasthan)
❖ Published in the Gazette – 22 May 2012	❖ Act No. 22 of 2012

- ✓ Rajasthan is the first state in the country to implement this act to provide legal rights and resolve public issues.
- ✓ **Nodal Agency** - Department of Administrative Reforms and Coordination.

Definitions -

Right to be heard	The right of a citizen to be given an opportunity for a hearing on a grievance/complaint within the prescribed time frame. ✓ The right to also receive information about the decision on the complaint is included in this. ✓ The public authority must inform the complainant about this within 7 days.
Public Hearing Officer (PHO)	The officer of the concerned department to whom an application is made by a citizen for the opportunity of a hearing is called the Public Hearing Officer (PHO). ✓ A Public Hearing Officer is appointed by the state government for each department.
Information and Facilitation Center (IFC)	❖ The state government established the IFC to effectively address public grievances. • IFC includes the following: ✓ Help Desk ✓ Public Assistance Center ✓ Customer Service Center ✓ Call Center

	IFC provides the complainant with the following facilities - ✓ Application of complaint. ✓ Complaint redressal. ✓ In promoting the Act.
Public Authority	Any institution/corporation or company owned, controlled, or funded by the Central or State Government is a public authority.

❖ **Provisions/Features –**

- This law supplements the Public Service Guarantee Act.
- Provides an opportunity for timely hearing of complaints.
- Complaints can be made on plain paper mentioning the name, designation, department of the public servant, and the subject of the complaint.
- Formation of Information and Facilitation Centre (IFC) to assist the complainant.
- Opportunity for hearing will be provided within a definite time frame.
- Receipt will be given to the complainant/respondent by the public hearing officer (PHO) to dispose of the application within 15 days).

❖ **Complaint Procedure:-**

- A complainant submits an application to the Public Hearing Officer (PHO) nominated by the concerned department/organization of a public authority, against a public servant. (Upon receiving the application, the Public Hearing Officer issues an acknowledgment receipt to the applicant, mentioning the time limit within which the opportunity for a hearing will be provided)
 - ✓ **It is mandatory for the Public Hearing Officer to dispose of the application within 15 days.**
 - ✓ **No fee is chargeable for the application (the application is free of cost).**
 - ✓ **If the Public Hearing Officer denies the complainant an opportunity for a hearing, the reason for such denial must be provided.**
 - ✓ **All information, including the time limit for filing an appeal and the details of the concerned appellate authority, is provided.**

- ❖ If the complainant does not receive an opportunity for a hearing within the prescribed time limit, the complainant may file an appeal. The appeal provisions under the Act are as follows: -

Appellate Provisions

First Appeal (within 30 days)	Second Appeal (within 30 days)
If the Public Hearing Officer does not provide an opportunity for hearing even after the completion of 15 days, then— ➤ The complainant may file a appeal before the First Appellate Authority within 30 days.	If the complainant is not satisfied with the decision of the First Appellate Authority, then— ➤ The complainant may file an appeal before the Second Appellate Authority within 30 days. ✓ The decision of the Second Appellate Authority shall be final.

✓ **Judicial intervention is prohibited under this law.**

❖ **A Public Hearing Officer has been designated in every office, who will dispose of the appeal within 15 days**

Level	Hearing Officer
Gram Panchayat Level	Village Development Officer (VDO)
Tehsil Level	Tehsildar (TDR)
Panchayat Samiti Level	Block Development Officer (BDO)
Sub-division Level	Sub-Divisional Officer
District Level	Additional District Collector

Level	Hearing Officer
Zila Parishad Level	Chief Executive Officer (CEO)
Municipality Level	Executive Officer (EO)
Nagar Parishad Level	Nagar Parishad Commissioner
Municipal Corporation Level	Municipal Corporation Commissioner
Division Level	Additional Divisional Commissioner

✎ **For hearing complaints related to the Nagar Parishad Commissioner, the First Appellate Authority shall be the Chairperson (Nagar Parishad).**

Note: Under this Act, various committees are constituted, such as: -

- ✓ **At the Sub-division Level – Sub-divisional Public Grievance and Vigilance Committee.**
- ✓ **At the District Level – District-level Public Grievance and Vigilance Committee.**

Provision for Penalties/Fines

If the Public Hearing Officer/First Appellate Authority of the concerned department is found guilty, the Second Appellate Authority may take action as follows: -	Revision (within 60 days)
➤ If the Public Hearing Officer fails to provide a hearing opportunity within the prescribed time limit, or if the First Appellate Authority fails to perform their duty → a fine of ₹500 to ₹5,000 may be imposed. Note: The Second Appellate Authority may also recommend disciplinary action against the said authorities to the competent authority (under the service rules). ✓ The First and Second Appellate Authorities have the powers to conduct proceedings under the Civil Procedure Code, 1908. ✓ The penalty amount will be recovered from the salary of the concerned officer. ✓ The penalty amount may be given to the applicant as compensation.	➤ Public Hearing Officer or first appellate authority aggrieved by an order of the second appellate authority in respect of imposing of penalty under this Act may make an application for revision to the officer or authority nominated by the State Government within a period of sixty days from the date of that order.

Difference			
PSGA, 2011		RTHA, 2012	
1.	Effective - 14 November, 2011	1.	Effective - 1 August, 2012
2.	Timely delivery of services to citizens.	2.	To provide a timely opportunity of hearing on complaints made by citizens against public servants.
3.	Appointment of a designated officer in every department.	3.	Appointment of a Public Hearing Officer (PHO) in every department.
4.	Two-tier system – First Appeal within 30 days (to be disposed of within 21 days) → Second Appeal within 60 days.	4.	Three-tier system – Public Hearing Officer (hearing within 15 days) → First Appeal to the First Appellate Authority within 30 days → Second Appeal to the Second Appellate Authority within 30 days.
5.	For the Second Appeal – 60 days.	5.	For the Second Appeal – 30 days
6.	Two types of fines – ✓ Rs 250 – Rs 500 ✓ Rs 500 – Rs 5000	6.	One type of fine – Rs 500 – Rs 5000

Similarities between both Acts

- Expansion of the Citizen's Charter
- Implemented by the Department of Administrative Reforms and Coordination
- 30 days for the First Appeal in both
- Provision of penalties in both
- Establishes legal obligations for protecting the rights of the general public

Important facts

- The First Appellate Authority may accept an appeal even after the expiry of 30 days if satisfied that the appellant had valid and sufficient reasons for not filing the appeal in time (i.e., the time limit may be extended).
- If the Public Hearing Officer fails to provide a hearing opportunity within the prescribed time limit, the aggrieved person may directly submit the complaint to the First Appellate Authority.
- An aggrieved person may also directly appeal to the Second Appellate Authority if the Public Hearing Officer or the First Appellate Authority fails to comply with the orders of the First Appellate Authority, or if the First Appellate Authority does not dispose of the appeal within the prescribed time limits.

- ✓ The Government of Rajasthan has notified the following as officers at the Panchayat level for matters other than revenue.

Panchayat Level	Public Hearing Officer	First Appellate Authority	Second Appellate Authority
Revenue matters	Patwari	Tehsildar	Sub-division Public Grievance and Vigilance Committee
Non-revenue matters	Village Development Officer	Block Development Officer	Sub-division Public Grievance and Vigilance Committee

Some important Acts and years

- ❖ Consumer Protection Act, 2019 (replacing the 1986 Act)
- ❖ The Muslim Women (Protection of Rights on Marriage) Act, 2012
- ❖ Rights of Persons with Disabilities Act, 2016